WITHOUT PREJUDICE — CONFIDENTIAL

NOT ADMISSIBLE IN ANY ARBITRAL OR COURT PROCEEDINGS

POSITION SUMMARY

TON INFRASTRUCTURE LTD.

In the matter of NRG Bloom Inc. v. TON Infrastructure Ltd.

March 5, 2026

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1. PURPOSE AND STATUS OF THIS DOCUMENT

1.1 This Position Summary is submitted by TON Infrastructure Ltd. ("TON") in accordance with the without-prejudice negotiation framework mutually agreed between the parties in correspondence dated February 24, 2026. It is strictly confidential, without prejudice, and inadmissible in any subsequent arbitral or court proceedings.

1.2 This document does not constitute an admission of liability, a waiver of any right or defence, or an acknowledgement that NRG Bloom Inc. ("NRG Bloom") has any legal entitlement to compensation under any agreement between the parties. TON's legal positions, as set out in its Response Letter dated February 20, 2026 and its Response to Counter-Response dated February 23, 2026, are maintained in their entirety.

1.3 This Position Summary is submitted in the spirit of reaching a pragmatic commercial resolution and bringing this matter to a clean and final conclusion for both parties.

2. TON'S ASSESSMENT OF THE DISPUTE

2.1 The Site Was Never Commissioned

2.1.1 The central fact that NRG Bloom's correspondence has consistently failed to address is this: the Ogboinbiri site has never been commissioned with a TON Infraflow container (“Infraflow”). Not a single Infraflow has been brought into operation. No Bitcoin has been mined in an Infraflow. No revenue of any kind has been generated from the Infraflow at the Ogboinbiri site.

2.1.2 NRG Bloom's damages narrative is built on the premise that TON terminated the relationship "at the precise point when mining revenue was about to accrue." That characterization is not supported by the facts. At no point during the contract term was the site close to commissioning, and it remains non-operational today. Any suggestion that termination interrupted imminent revenue generation is not supported by the facts. NRG Bloom's own Phase 1 Deployment Timeline projected a go-live date of "End of May / Early June 2025" — a target the site never came close to meeting, with operations remaining over nine months behind schedule at the time of termination. (Exhibit H.)

2.1.3 As a direct consequence, NRG Bloom received no revenue share and no operations fees during the contract term — not because TON withheld payments — but because no revenue existed from which any payment could be made. The Agreement was structured as a revenue sharing arrangement. Where there is no revenue, there is no entitlement to a share of it.

2.1.4 The same principle applies to the Axxela opportunity. The Axxela Power Purchase Agreement was never executed. No revenue was ever generated from the Axxela relationship by any party. TON's position is that any claim for compensation arising from an unexecuted commercial opportunity — where no contract was signed, no operations commenced, and no revenue flowed to any party — has no recoverable foundation in law or in fact. A damages claim premised entirely on projected value from a transaction that never closed is speculative in nature. TON reserves all rights in respect of this point should it be pursued in any forum.

2.1.5 In September 2025, while the Agreement remained nominally in place, NRG Bloom transmitted to TON a document entitled "Shared Vision Proposal" proposing an entirely new partnership framework between the parties for future Bitcoin mining operations in Nigeria. That document explicitly states: "The Ogboinbiri Community deal falls outside the scope of this proposal." (Exhibit A.) NRG Bloom's own written characterization of Ogboinbiri as falling outside any future partnership framework is entirely inconsistent with its current position that the SDA relationship was a thriving and productive arrangement wrongfully terminated by TON. The Shared Vision Proposal also proposes a finder's fee of $5,000 per MW in respect of the Axxela opportunity — the same opportunity NRG Bloom now claims entitles it in circumvention damages. NRG Bloom's own contemporaneous valuation of its Axxela entitlement, made in writing and transmitted directly to TON, is directly at odds with the damages quantum it now advances.

2.1.6 In response to the Shared Vision Proposal, TON's Founder advised NRG Bloom on October 3, 2025 that TON was not in a position to fund Nigeria travel expenses, that any Axxela compensation discussions would be managed separately by TON's CEO, and that no stakeholder engagement or site visits should proceed without clearly defined agreements and verified technical feasibility. NRG Bloom's CEO responded on October 4, 2025 accepting each of these conditions without objection. (Exhibit B.) NRG Bloom's CEO subsequently introduced legal counsel — Dayo Adu, Managing Partner of Moroom Africa — by email on October 21, 2025, and formally requested a structured meeting to finalize terms of engagement. The introduction of external legal counsel at this stage further confirms that the parties were engaged in preliminary negotiations over whether a new relationship should exist, not executing an active operational partnership progressing toward imminent revenue. This exchange further confirms that by October 2025 the parties were not operating as collaborative partners progressing toward imminent revenue generation — they were negotiating whether a new relationship should exist at all.

2.1.7 On January 27, 2026 — sixteen days before TON exercised its contractual right to terminate — NRG Bloom's CEO transmitted to TON an incident report documenting that an individual acting on behalf of a third-party investor in NRG Bloom had gained unauthorized access to the Ogboinbiri site, manually shut down the site transformer and operational container, and brought all site operations to a complete standstill. The report further discloses that a separate investor dispute over asset ownership at the site had been ongoing for months, that a "Final Demand" asserting sole ownership of site assets had been issued on January 23, 2026, and that NRG Bloom's own contracted security team failed to prevent the breach. (Exhibit C.) The site was therefore already non-operational due to NRG Bloom's own internal investor dispute at the time TON terminated the Agreement. The characterization that TON terminated "at the precise moment revenue was about to flow" is not supported by the facts. Revenue was not imminent. The site was offline.

2.2 The Budget Overrun

2.2.1 A significant contributing factor to the site's non-commissioning is the substantial inaccuracy of NRG Bloom's budget estimates provided to TON in writing during the course of

the relationship. NRG Bloom, as the party responsible under Section 1 of the Agreement for operational execution, site management, and local compliance, provided TON with cost projections that proved to be materially understated. TON's contemporaneous written record of these discrepancies is set out in correspondence dated April 22, 2025. (Exhibit E.) Notably, neither NRG Bloom's CEO nor its COO disputed these cost overruns at the time. Both responded to TON's April 22, 2025 correspondence acknowledging the cost challenges and expressing willingness to work toward solutions. NRG Bloom's failure to dispute these figures contemporaneously is inconsistent with its current position that TON bears responsibility for the project's financial difficulties.

2.2.2 TON's actual costs of site development have exceeded NRG Bloom's written estimates significantly. TON was 100% responsible for the funding of those costs. This overrun has directly impacted the project timeline and the viability of commissioning the site within the original parameters. TON has absorbed these losses entirely.

2.2.3 TON has chosen not to formally advance a counterclaim for these losses in this negotiation. That is a deliberate commercial decision, not a concession on the merits. TON reserves all rights with respect to this claim should this matter proceed to arbitration.

2.3 The April 2025 Agreement Was Never Signed

2.3.1 NRG Bloom's correspondence has repeatedly referenced the April 2025 agreement and its revenue terms as the starting point for what it characterizes as a pattern of "progressive devaluation." TON notes for the record that the only binding agreement between the parties is the Site Development & Revenue Sharing Agreement dated May 16, 2025.

2.3.2 Furthermore, the previous unsigned drafts placed responsibility for power costs/community share on NRG Bloom. The signed May 2025 Agreement transferred that obligation to TON — a material concession made by TON in NRG Bloom's favor at execution. This context is absent from NRG Bloom's devaluation narrative and directly contradicts it. (Exhibit D.)

2.4 Operational Timeline and Revenue Projection Period

2.4.1 The Electricity Supply Agreement between TON and the Ogboinbiri community, executed on June 25, 2025, is for an initial term of three years, subject to renewal at the parties' discretion. That agreement governs TON's power supply and community revenue share arrangements at the site. It is the foundational operational document for any revenue projections associated with the Ogboinbiri project.

2.4.2 Any revenue projection that extends beyond the initial three-year contractual term — to June 2028 — is not supported by any executed agreement and relies entirely on the assumption that the power supply arrangement would be renewed on terms not yet agreed. Furthermore, even a three-year projection would require that the site had been operational from the outset, which it has not been. The site has not been commissioned with an Infraflow Container. No Bitcoin has been mined. The agreement was executed on June 25, 2025, and as of the date of this Position Summary, the site remains non-operational. Any revenue loss calculation that does not account for this timeline significantly overstates the recoverable period, even on the most generous reading of NRG Bloom's entitlements.

2.5 Legal Position Summary

2.5.1 TON's threshold legal defenses remain intact and unaddressed by NRG Bloom. In particular: NRG Bloom Services Limited (Nigeria) was not incorporated until October 17, 2025 — five months after the Agreement was signed — and cannot establish a retroactive agency

relationship for the period prior to its existence. Section 5 of the Agreement expressly bars any damages claim arising from TON's election to discontinue participation. The affirmation doctrine extinguishes the economic duress claim. The MNDA circumvention claims are subject exclusively to Alberta law and Alberta courts.

2.5.2 NRG Bloom has not substantively addressed any of these points in its correspondence to date.

3. TON'S COMMERCIAL POSITION

3.1 Without conceding any legal entitlement on the part of NRG Bloom, and solely in the interest of avoiding the cost, time, and distraction of arbitration proceedings, TON is prepared to make a nominal commercial payment to bring this matter to a final and clean close. This payment does not constitute an acknowledgement of any contribution, entitlement, or liability of any kind.

3.2 TON does not acknowledge any entitlement arising from NRG Bloom's operational performance, which was materially below the standard required under Section 1 of the Agreement and contributed directly to the site's non-commissioning. NRG Bloom's conduct during the relationship included escalating and unreasonable financial demands, culminating in a written declaration by NRG Bloom's COO that a 77% hashrate allocation was "final and non-negotiable." (Exhibit F.) TON notes for the record that its own written response of July 1, 2025 — transmitted the same day as NRG Bloom's COO issued the 77% ultimatum — confirmed that TON had already agreed to the 5-year land lease and committed to beginning civil works, as verified in a call with the community representative. NRG Bloom's 'final warning' was issued in direct contradiction of facts already established between the parties.Further evidence of NRG Bloom's operational deficiencies is documented in meeting minutes dated December 22, 2025, which record that NRG Bloom's own 20' mining container — equipment NRG Bloom operated and was responsible for — had multiple critical non-code-compliant electrical deficiencies, including undersized conductors, inadequate overcurrent protection, and improper neutral-ground bonding. NRG Bloom's CEO contacted TON in mid-December 2025 seeking assistance with these issues, which were of NRG Bloom's own making. (Exhibit G.) TON does not acknowledge any entitlement arising from the Axxela relationship, which was developed and managed by TON and in respect of which NRG Bloom was kept informed throughout. TON does not acknowledge any entitlement to revenue share, as no revenue has been generated.

3.3 On the basis, and in the interests of reaching a final and clean resolution, TON is prepared to make a commercial settlement offer as set out in Section 4 below.

4. TON'S SETTLEMENT OFFER

4.1 TON offers to pay NRG Bloom a total settlement sum of **USD $10,000 (ten thousand United States dollars)**, in full and final satisfaction of all claims, counterclaims, and disputes arising out of or in connection with any agreement between the parties, including but not limited to the MNDA, the Site Development & Revenue Sharing Agreement, and Addendum No. 1.

4.2 Given that the Ogboinbiri site has not yet been commissioned and no revenue has been generated, TON proposes that the settlement sum be structured as follows:

> 4.2.1 The applicable settlement sum shall be calculated so as to discharge the total settlement sum of USD $10,000 over a period not exceeding twelve (12) months from the formal signed settlement agreement.

4.3 TON notes that this offer, when viewed in the context of TON's unasserted counterclaim for budget overrun losses, represents a net commercial transfer to NRG Bloom of significantly greater value than the face settlement sum. TON is absorbing those losses as part of reaching a clean resolution.

5. CONDITIONS OF SETTLEMENT

5.1 TON's offer is conditional upon the execution of a formal settlement agreement incorporating the following terms:

5.1.1 Full and final mutual release of all claims, known and unknown, arising out of or in connection with any agreement or dealing between the parties.

5.1.2 Mutual non-disparagement — neither party shall make any negative, derogatory, or disparaging statement about the other to any third party, including Axxela, the Ogboinbiri community, investors, or media.

5.1.3 Strict confidentiality — the existence and terms of the settlement shall remain confidential to both parties and their legal counsel.

5.1.4 Return or destruction of any TON confidential information or proprietary materials in NRG Bloom's possession, including but not limited to technical specifications, financial projections, photos, videos, and operational data.

5.1.5 Withdrawal of all related correspondence with prejudice.

6. EXPIRY OF OFFER

6.1 This offer is open for acceptance until close of business MST on **March 10, 2026**. If not accepted by that date, the offer is withdrawn without further notice.

6.2 For the avoidance of doubt, nothing in this Position Summary constitutes an admission of liability or a waiver of any of TON's legal rights, defenses, or potential counterclaims. All rights are expressly reserved.

Respectfully submitted,

TON Infrastructure Ltd.

Marley Broda, Chief Executive Officer, TON Infrastructure Ltd.

[Email] marley@ton-infra.com

[Office] 780-920-5605

March 5, 2026

TON INFRASTRUCTURE

EXHIBITS

Exhibit	Description
Exhibit A	TON x NRG Bloom Shared Vision Proposal
Exhibit B	Email thread: Re: Shared Vision Proposal
Exhibit C	Incident Report: Unauthorized Asset Interference and Operational Sabotage
Exhibit D	Draft Partnership Agreement (Unsigned)
Exhibit E	Email thread: Re: 25-TI-01 Ogboinbiri, with project costing review meeting minutes
Exhibit F	Email thread: Urgent: Final Position on Land Lease and Partnership Terms
Exhibit G	Meeting Minutes: 20’ Pod Electrical Design Review, with email reply from Makir Volcy
Exhibit H	Phase 1 Deployment Timeline, NRG Bloom Inc

TON x NRG Shared Vision Proposal

TON and NRG Bloom ride together in Nigeria to build the country's top Bitcoin mining infrastructure. TON brings the cash and big-gun technical muscle. NRG Bloom brings boots on the ground: the people, the politics, and the doors that get opened.

The Ogboinbiri Community deal falls outside the scope of this proposal.

What Each Brings

TON

- Capital and heavy infrastructure spend
- Big-scale technical rollout
- ASIC sourcing at size
- Always free to step in with stakeholders if you want to

NRG Bloom

- Local ops and crew management
- Dealing with government and community power brokers
- Real connections that get meetings and open gates
- Originating deals in Nigeria
- Can handle the whole stakeholder mess if TON prefers to keep distance

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Money Setup

Management Fee
TON pays NRG Bloom to run local projects. Straightforward.

Deal Origination Incentive
If NRG Bloom finds the deal, there's extra comp, either a finder's fee at close or hashrate share. We'll set the exact terms. For Axxela, we propose $5000 per MW
If TON finds the deal, NRG's cut stays at the management fee.

Co-Invest Option
If NRG Bloom throws money in the pot, we get a cut back that matches what we put in.

Next Step

First move: TON covers Makir's trip to Nigeria. Deduct it from the Axxela finder's fee. Even though Ogboinbiri isn't part of this agreement, NRG's relationships there will help TON's trip. At the same time, we can finalize the Obrikom deal, the Axxela deal and meet with potential stakeholders and visit other sites.

From: **Makir Volcy** makir@nrgbloom.com
Subject: Re: Shared Vision Proposal
Date: October 21, 2025 at 8:53 AM
To: Tyler Macpherson tyler@ton-infra.com, Dayo Adu Adu dayo.adu@moroomafrica.com
Cc: Julie Peeters julie@nrgbloom.com, Marley Broda marley@ton-infra.com, Jeff Jespersen jeff.jespersen@ton-infra.com

MV

Hi Marley,

I trust you are doing well.

Further to our recent exchanges, we would appreciate the opportunity to schedule a clear meeting date to discuss and finalise immediate and future terms of engagement. Having a structured discussion will enable us to align expectations, timelines, and deliverables in a manner that ensures efficiency and accountability, rather than leaving the framework open-ended.

I'd also like to introduce Dayo Adu - a member of our Board and the Managing Partner of Moroom Africa, a leading Pan-African law firm. He is a distinguished legal practitioner with deep experience across multi-jurisdictional matters and is keen to co-lead the discussions as we refine and conclude the engagement structure.

Please kindly share your preferred date and time for the meeting this week, so we can firm up arrangements accordingly.

Makir Volcy
CEO, NRG Bloom Inc.

1-514-602-5411 | Makir@nrgbloom.com

On Mon, 6 Oct 2025 at 10:16, Tyler Macpherson <tyler@ton-infra.com> wrote:

I am going to have to defer to Marley on this.

@Marley Broda, Please coordinate with Makir.

Regards,

Tyler MacPherson

Founder

TON Infrastructure LTD

(Office)-1-(780)-920-5605

(Cell)-1-(780)-916-7357

Bookings

"The Only Easy Day Was Yesterday"

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From: Makir Volcy <makir@nrgbloom.com>
Sent: Monday, October 6, 2025 7:40 AM
To: Tyler Macpherson <tyler@ton-infra.com>; Julie Peeters <julie@nrgbloom.com>
Cc: Marley Broda <marley@ton-infra.com>; Jeff Jespersen <jeff.jespersen@ton-infra.com>
Subject: Re: Shared Vision Proposal

Hey,

Let's have a call this week to discuss this further. What is your availability ?

Thanks

Makir Volcy
CEO, NRG Bloom Inc.

1-514-602-5411 | Makir@nrgbloom.com

On Sun, 5 Oct 2025 at 11:10, Tyler Macpherson <tyler@ton-infra.com> wrote:

Morning,

I noticed the initial proposal from NRG Bloom was not included, so I am attaching it now for reference. My response is below in the thread.

Regards,

Tyler MacPherson

Founder

TON Infrastructure LTD

(Office)-1-(780)-920-5605

(Cell)-1-(780)-916-7357

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From: Tyler Macpherson <tyler@ton-infra.com>
Sent: Saturday, October 4, 2025 12:51 PM
To: Makir Volcy <makir@nrgbloom.com>; Marley Broda <marley@ton-infra.com>; Jeff Jespersen <jeff.jespersen@ton-infra.com>
Subject: Re: Shared Vision Proposal

Hello Makir, thank you for the email. I've included Jeff and Marley from my side to review and strategize.

Once we have had an opportunity to discuss internally of the items that have been previously discussed in this email, I'm sure someone will reach out to set up a call

Regards,

Tyler MacPherson
Founder
TON Infrastructure
(Office)-1-(780)-920-5605
(Cell)-1-(780)-916-7357

WWW.TON-Infra.com

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From: Makir Volcy <makir@nrgbloom.com>
Sent: Saturday, October 4, 2025 12:25:42 PM
To: Tyler Macpherson <tyler@ton-infra.com>
Subject: Re: Shared Vision Proposal

Dear Tyler

Dear Tyler,

Thank you for your thoughtful review and candid feedback. We appreciate TON Infrastructure's clarity and the emphasis on ensuring structured, sustainable collaboration.

On the Nigeria trip, we fully understand your position regarding travel funding and are comfortable managing such costs independently or deferring until formalized terms are in place.

Regarding Axxela, we respect your preference that compensation matters be managed directly with Marley. We are aligned with keeping those discussions separate from the broader partnership track.

On stakeholder engagement and site visits, we agree entirely that TON's reputation must remain protected and that engagement should only follow once frameworks and feasibility are well-established. Our intention is aligned with yours: to only proceed when there is mutual confidence in execution.

Looking ahead, we welcome your suggestion for a comprehensive meeting with the relevant TON team members. This would allow us to:

- Discuss potential partnership structures openly
- Align expectations on both sides
- Clarify the practical scope of collaboration
- Establish clear boundaries and terms for future engagement

NRG Bloom values direct communication and is committed to a structured approach. Please let us know your team's availability to coordinate this next step.

I propose Tuesday 10 AM EST. Wednesday 12 PM EST and Friday 11PM EST

We look forward to building a pathway that serves both organizations' interests.

Makir Volcy
CEO, NRG Bloom Inc.

1-514-602-5411 | Makir@nrgbloom.com

On Fri, 3 Oct 2025 at 13:58, Tyler Macpherson <tyler@ton-infra.com> wrote:

> Makir,
>
> Thank you for taking the time to outline your vision for a potential partnership between TON Infrastructure and NRG Bloom in Nigeria. I appreciate the thoughtful structure of your proposal and the clarity with which you've presented your perspective on collaboration.
>
> After careful review, I'd like to address several key points that require clarification before we can move forward with substantive discussions:
>
> **Regarding the Nigeria Trip**
>
> TON Infrastructure is not in a position to fund travel expenses to Nigeria at this time. Capital expenditures of this nature require established agreements and clear project deliverables already in place. Any travel costs would need to be managed independently or deferred until we have formalized partnership terms with concrete projects confirmed.
>
> **Axxela Project Compensation**
>
> The Axxela opportunity has a history between our organizations. Previous attempts to structure this arrangement encountered challenges that prevented progress. Given this background, any discussion regarding compensation related to Axxela needs to be handled directly by Marley, who will manage those specific negotiations. I would prefer not to integrate this into broader partnership discussions until those conversations have concluded separately.

Stakeholder Engagement and Site Visits

I want to be direct about my concerns regarding premature stakeholder engagement. TON Infrastructure has worked deliberately to build a strong reputation in this industry, and I am not prepared to put that reputation at risk through commitments we cannot confidently deliver on. Before engaging with potential stakeholders or visiting proposed sites, we need clearly defined agreements, verified technical feasibility, and established operational frameworks. Introductions and site visits are valuable only when we can stand behind our ability to execute.

Path Forward

If NRG Bloom is genuinely interested in exploring a structured partnership with TON Infrastructure, the appropriate next step is to schedule a comprehensive meeting with the relevant TON team members. This meeting would provide the opportunity to:

- Discuss partnership structures openly and candidly
- Align expectations on both sides
- Evaluate whether there is realistic potential for collaboration
- Establish clear terms and boundaries for any future engagement

I believe in direct communication and structured processes. If this approach aligns with NRG Bloom's intentions, please coordinate with my team to schedule a meeting where we can explore these matters thoroughly and determine if there is a viable path forward that serves both organizations' interests.

I look forward to your response.

Regards,

Tyler MacPherson

Founder

TON Infrastructure LTD

(Office)-1-(780)-920-5605

(Cell)-1-(780)-916-7357

Bookings

"The Only Easy Day Was Yesterday"

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From: Makir Volcy <makir@nrgbloom.com>
Sent: Tuesday, September 30, 2025 8:19 AM
To: Tyler Macpherson <tyler@ton-infra.com>
Subject: Shared Vision Proposal

Hi Tyler,

Here's what we have in mind in order to strike a partnership between our teams. Let me know what you think

Makir

Makir Volcy
CEO, NRG Bloom Inc.

1-514-602-5411 | Makir@nrgbloom.com

From: **Makir Volcy** makir@nrgbloom.com
Subject: Incident Report : Site Shutdown
Date: January 27, 2026 at 6:51 AM
To: Marley Broda marley@ton-infra.com
Cc: Jeff Jespersen jeff.jespersen@ton-infra.com, Tyler Macpherson tyler@ton-infra.com, Julie Peeters julie@nrgbloom.com

MV

Hi Marley,

Please find attached the formal incident report regarding the unauthorized shutdown at our Ogboinbiri site today. I have documented the timeline of events and the evidence gathered thus far.

I look forward to your guidance on the immediate next steps we should take to resolve this and protect our operations.

Thank you

Makir Volcy
CEO, NRG Bloom Inc.

1-514-602-5411 | Makir@nrgbloom.com

INCIDENT REPORT_ UNAUTHORIZED ASSET...
85 KB

INCIDENT REPORT: UNAUTHORIZED ASSET INTERFERENCE AND OPERATIONAL SABOTAGE

Date of Report: January 27, 2026 : **6:15 AM (EST) 12:15 PM WAT**

Incident Date: January 27, 2026

Location: Ogboinbiri, Bayelsa, Nigeria

Reported By:

Makir Volcy
President and CEO, NRG Bloom

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1. Executive Summary

This report documents a significant physical escalation of a pre-existing investment dispute. On the morning of January 27, 2026, an individual identified as Yakubu (an associate of the investor, Ola) gained unauthorized access to the NRG Bloom site in Ogboinbiri. The individual proceeded to shut down the site transformer and operational container, effectively halting all business activities. This breach was facilitated by the failure of the contracted security detail to protect the site perimeter.

2. Detailed Chronology of Events

The following timeline reflects the sequence of communication and evidence received:

Time (WAT)	Event	Description
09:37 AM	**Initial Contact**	Received an incoming call from the Site Manager. The call was not picked up at that exact moment.
09:49 AM	**Incident Notification**	Received a text message from the Head of Operations reporting that Yakubu (Ola's worker) had entered the site and shut down the transformer and the container.

10:48 AM	**Evidence Receipt**	Received video footage recorded on-site. The video explicitly shows the unauthorized party (Yakubu) manually turning off the transformer.

3. Security Breach & Unauthorized Access

Despite being under the employ of NRG Bloom, the **on-site security team** permitted Yakubu and Hassan (his party) to enter the premises without authorization. They allowed the party direct access to critical infrastructure (the transformer and container), resulting in the immediate cessation of operations.

4. Context of Dispute

The party responsible for the shutdown, Ola, is an investor in NRG Bloom. This incident is an escalation of a months-long dispute:

- **Investor Claim:** Ola asserts personal ownership of specific equipment.
- **Company Position:** NRG Bloom maintains that these assets are part of the formal investment agreement signed by Ola.
- **On November 1, 2025**, a formal settlement proposal for the full repayment of the investment was submitted to Ola and his legal counsel; to date, this proposal remains unacknowledged and unanswered.
- **Jan 23, 2026:** Ola issued a "Final Demand" letter, claiming sole ownership of the Ogboinbiri site assets and providing formal notice of his intent to "physically seize" equipment.
- **Nature of Escalation:** While previously a legal and verbal dispute, today's actions constitute **physical interference** and a **breach of the investment agreement**.

5. Current Status & Legal Action

- **Operations:** Currently at a standstill due to the power shutdown.
- **Legal:** I have contacted our legal counsel to report the trespass and operational disruption. We are currently awaiting further instruction from the lawyer.
- **Evidence:** Text logs and video evidence (received at 10:48 AM) have been preserved for legal proceedings.

PARTNERSHIP AGREEMENT

BETWEEN:

TON INFRASTRUCTURE LTD, a company organized under the laws of Alberta, Canada (hereinafter referred to as "TON")

AND

NRG BLOOM INC, a company organized under the laws of Quebec, Canada (hereinafter referred to as "NRG BLOOM")

(TON and NRG BLOOM are collectively referred to as the "Parties" and individually as a "Party")

EFFECTIVE DATE: March 20, 2025

Commented [1]: Date Changed
1 total reaction
Makir Volcy reacted with 👍 at 2025-03-21 16:06 p.m.

RECITALS:

WHEREAS, TON is engaged in the business of bitcoin mining infrastructure development and operations;

WHEREAS, NRG BLOOM has established community relationships in Nigeria and expertise in site development and local data center operations;

Commented [2]: added Data Center
1 total reaction
Makir Volcy reacted with 👍 at 2025-03-21 16:06 p.m.

WHEREAS, the Parties wish to collaborate in the development and operation of bitcoin mining facilities in Nigeria, specifically at the Ogboinbiri site (5MW) and Obrikom site (10MW);

WHEREAS, this Agreement sets forth the terms and conditions of the Parties' agreement for implementing the strategic partnership;

NOW, THEREFORE, in consideration of the mutual covenants and agreements hereinafter set forth, the Parties agree as follows:

ARTICLE 1: DEFINITIONS

1.1 **"Agreement"** means this Partnership Agreement and all schedules and exhibits attached hereto.

1.2 **"Bitcoin Miners"** means the specialized equipment used for mining

bitcoin. 1.3 **"Effective Date"** means the date first written above.

1.4 **"Infraflow Container"** means the modular container designed for bitcoin mining operations designed and provided by TON.

1.5 **"Management Fee"** means the compensation paid to NRG BLOOM for operational management services.

1.6 **"Phase 1"** means the initial deployment at the Ogboinbiri site of one Infraflow container with 360 miners.

1.7 **"Phase 2"** means the subsequent deployment at the Ogboinbiri site of three additional Infraflow containers with 1,080 miners.

1.8 **"Site 1"** means the Ogboinbiri Community location for bitcoin mining

operations.

1.9 **"Site 2"** means the Obrikom Community location for bitcoin mining operations.

ARTICLE 2: PURPOSE AND SCOPE

2.1 The purpose of this Agreement is to establish a strategic partnership between TON and NRG BLOOM for the development and operation of bitcoin mining infrastructure in Nigeria.

2.2 The partnership shall follow a phased approach designed to ensure risk mitigation, proof of concept validation, and trust-building between all stakeholders.

2.3 The scope of the partnership includes the development and operation of:

a) Site 1: Ogboinbiri (5MW capacity)
b) Site 2: Obrikom Community (10MW capacity)

ARTICLE 3: TERM

3.1 This Agreement shall commence on the Effective Date and shall continue for an initial term of five (5) years, unless earlier terminated in accordance with the provisions of Article 11.

3.2 The Parties may extend the term of this Agreement by mutual written

agreement.

ARTICLE 4: ROLES AND RESPONSIBILITIES

4.1 **TON's Responsibilities:**

a) Provision of capital investment for both sites as outlined in details of this agreement

b) Supply of Infraflow containers, mining equipment, and infrastructure

c) Responsibility for equipment shipping and customs clearance
d) Technical expertise in deployment and operations
e) Ongoing operational oversight, training, and processes
f) 3D site drawings and technical planning
g) Financial management and reporting

4.2 **NRG BLOOM's Responsibilities:**

a) Established community relationships in Nigeria
b) Site identification and access
c) Local regulatory knowledge
d) Community liaison services
e) Local operational support and site management
f) On-site operations staffing
g) Logistics coordination from port to site

ARTICLE 5: IMPLEMENTATION PLAN - SITE 1 (OGBOINBIRI)

5.1 **Phase 1: Initial Deployment**

a) TON shall supply and deliver:
  i. 1 Infraflow container
  ii. 360 Bitcoin Miners
  iii. Transformer
  iv. All necessary cabling and electrical components
b) TON shall cover all shipping, customs fees, and development costs
c) Shipping date: Mid-March 2025
d) Estimated arrival at Lagos port: End of April 2025
e) Estimated arrival on site: Mid-May 2025 (after 2 weeks customs clearance)
f) Target operational date: End of May 2025 (approx. 1 week after site delivery)
g) Initial profit sharing: 50/50 split between TON and NRG BLOOM
h) NRG BLOOM shall provide the existing power agreement, including signed PPA or agreement with community/Nelson

5.2 **Phase 2: Full-Scale Deployment**

a) After 30 days of successful Phase 1 online operations, TON shall procure:
  i. 3 additional Infraflow containers
  ii. 1,080 additional miners (360 per container)
  iii. Transformers and all necessary electrical infrastructure
b) TON shall cover all associated costs to bring these containers online c) Upon completion of Phase 2 deployment and the additional 3 containers being operational:
  i. TON shall own and operate 3 containers with associated miners
  ii. NRG BLOOM shall take full ownership and operate the 360 miners from Phase 1

ARTICLE 6: IMPLEMENTATION PLAN - SITE 2 (OBRIKOM) 6.1 **Phase**

Commented [3]: Financial management of TON's assets such as the mined bitcoins to TON's wallets.
1 total reaction
Makir Volcy reacted with 👍 at 2025-03-19 23:55 p.m.

Commented [4]: Including Shugamines (Nelson)
1 total reaction
Makir Volcy reacted with 👍 at 2025-03-20 00:04 a.m.

Commented [5]: TON provides All funding for local expenses and third party management paid to NRG which pays all local parties for services rended.
1 total reaction
Makir Volcy reacted with 👍 at 2025-03-20 00:03 a.m.

Commented [6]: Change to actual shipping date
1 total reaction
Makir Volcy reacted with 👍 at 2025-03-20 00:04 a.m.

Commented [7]: This will be provided once TON Partnership is signed.

Commented [8]: to be sent tomorrow.

Commented [9]: Precisely define 30 days of successful operation Does it require a certain average hash rate or daily uptime threshold?

Commented [10]: Energized

Commented [11]: Proposal : Once all 4 containers have been installed and running online, We shall transition to a new structure that NRG Bloom and TON will pool the aggregate hashrate and 1440 ASICs and TON provides 1/4 of the total hashrate we produce together.
1 total reaction
Makir Volcy reacted with + at 2025-03-20 00:06 a.m.

1: Site Securing & Preparation

a) TON shall provide capital for securing initial 3MW:
   i. Groundbreaking fee: $3,000
   ii. Annual lease payment: $5,000
b) Target funding date: April 2025
c) NRG BLOOM shall provide site location details by March 14, 2025, including:
   i. GPS coordinates
   ii. Available land specifications
   iii. Distance to power plant
   iv. Distribution line path for optimal setup for 10MW
   v. Photos of site
d) Power negotiations will be conducted directly between TON and Nelson

6.2 **Phase 2: Equipment Deployment & Preparation**

a) Equipment procurement to begin after 1 month of successful operation of Ogboinbiri Phase 2
b) Site construction costs: $5,000 USD (estimated)
c) Site electrical costs: $10,000 USD (estimated)
d) TON shall supply and deliver:
   i. 3 Infraflow containers
   ii. 1,080 miners (3 containers worth)
   iii. Transformers and necessary electrical infrastructure
e) Estimated shipping timeline: 45 days to Lagos port after manufacturing
f) Estimated arrival on site: 2 weeks after port arrival
g) Estimated setup time: 1-2 weeks post-arrival

6.3 **Phase 3: Expansion**

a) Total site capacity: 10MW
b) After successful operation of initial 3MW (timeline TBD):
   i. Final power allocation/sharing structure for 10MW to be determined between TON and NRG BLOOM through a written amendment to this Agreement

Commented [12]: This is to be provided on a call with Marley as soon as we're signed and ready to go

Commented [13]: remove

Commented [16]: Add Lease of $5000 a year for the additional plots house the additional 3 containers

Commented [17]: 5000 per plot, 3 containers should fit on one. add this cost to this phase

Commented [18]: TON leaning toward exclusive ownership? If so, how does NRG Bloom benefit from that expansion?
1 total reaction
Makir Volcy reacted with 👍 at 2025-03-20 00:27 a.m.

ARTICLE 7: FINANCIAL TERMS

7.1 **Capital Investment**

a) TON shall provide capital investment for the sites as outlined in this agreement
b) Total estimated investment: $4,150,000 USD

7.2 **Power Cost Structure**

a) Operational power costs to be finalized through negotiations with Nelson

7.3 **Profit Sharing**

a) Site 1, Phase 1: 50/50 split between TON and NRG BLOOM
b) Site 1, Phase 2: TON retains 100% of profits from 3 containers; NRG BLOOM retains 100% of profits from the original container
c) Site 2: Phase 2: TON retains 100% of profits from 3 containers
d) Site 2: Phase 3: Power allotment structure to be determined for the full 10MW development by written mutually agreed amendment to this agreement

7.4 **Management Fee**

a) NRG BLOOM shall receive a management fee for site operations
b) The structure and amount of the management fee shall be detailed in Schedule A (to be developed by March 31, 2025)

ARTICLE 8: OPERATIONAL STRUCTURE

8.1 NRG BLOOM employees shall operate the sites with specific roles and responsibilities as defined in Schedule B (to be developed by March 31, 2025).

8.2 TON's operational standards and protocols shall be implemented and followed at all sites.

8.3 TON shall provide on-site training to NRG BLOOM's technical team. 8.4 The Parties shall establish joint operational protocols and communication channels.

ARTICLE 9: OWNERSHIP OF EQUIPMENT

9.1 **Site 1:**

a) TON shall own all equipment during Phase 1
b) After successful completion of Phase 2, TON shall transfer ownership of the original container and 360 miners to NRG BLOOM

c) TON shall retain ownership of the three additional containers, associated 1,080 miners and equipment during and after successful completion of Phase 2

9.2 **Site 2:**

a) TON shall own all equipment during Phase 1 and 2
b) Ownership allocation shall be determined for the remaining 7MW, as part of the final 10MW development agreement

9.3 All transfers of ownership shall be documented in writing and signed by both

Commented [20]: Once phase 2 completed. Profits will reflect 1/4 of the output total of all containers on site. Whereas TON keeps the equivalent of 3 containers on site. Assuring the combined effectiveness of all asics on site, new or old.
1 total reaction
Makir Volcy reacted with ❌ at 2025-03-21 16:04 p.m.

Commented [21]: Need clarification, what's the agreement on on in Phase 1 ?
1 total reaction
Makir Volcy reacted with 👍 at 2025-03-21 16:05 p.m.

Commented [22]: Option to replicate the 50/50 model for early containers if NRG Bloom invests capital or undertakes additional site improvement.
1 total reaction
Makir Volcy reacted with ❌ at 2025-03-21 16:05 p.m.

Commented [23]: NRG Bloom's fee and it includes : Local staff, Parts, Maintenance and repair, emergency, Logistics and transportation for management.
1 total reaction
Makir Volcy reacted with ⏳ at 2025-03-21 16:05 p.m.

Parties. **ARTICLE 10: INTELLECTUAL PROPERTY**

10.1 Each Party shall retain all rights, title, and interest in and to its own intellectual property.

10.2 Neither Party shall use the other Party's trademarks, trade names, or logos without the prior written consent of the other Party.

10.3 Any intellectual property developed jointly by the Parties during the term of this Agreement shall be owned jointly by the Parties, unless otherwise agreed in writing.

ARTICLE 11: TERMINATION

11.1 **Termination for Cause:**

a) Either Party may terminate this Agreement for cause upon thirty (30) days written notice to the other Party of a material breach of this Agreement if such breach remains uncured at the expiration of such period.

11.2 **Termination for Convenience:**

a) After the completion of Site 1, Phase 2, either Party may terminate this Agreement for convenience upon ninety (90) days written notice to the other Party.

11.3 **Effect of Termination:**

a) Upon termination, the Parties shall work together in good faith to ensure an orderly transition of operations
b) All financial obligations accrued prior to termination shall remain in effect c) Ownership of equipment shall be determined according to the phase of implementation at the time of termination

ARTICLE 12: DISPUTE RESOLUTION

12.1 The Parties shall attempt in good faith to resolve any dispute arising out of or relating to this Agreement promptly by negotiation between executives who have authority to settle the dispute.

12.2 If negotiation does not resolve the dispute within thirty (30) days, the Parties agree to submit the dispute to mediation.

12.3 If mediation does not resolve the dispute within sixty (60) days, either Party may initiate legal proceedings in accordance with Article 15.3.

ARTICLE 13: CONFIDENTIALITY

13.1 Each Party acknowledges that in connection with this Agreement it may receive certain confidential or proprietary information from the other Party.

13.2 Each Party shall maintain the confidentiality of all such information and shall not disclose such information to any third party without the prior written consent of the disclosing Party.

13.3 This confidentiality obligation shall survive the termination of this Agreement for a period of three (3) years.

ARTICLE 14: FORCE MAJEURE

14.1 Neither Party shall be liable for any failure or delay in performing its obligations under this Agreement due to causes beyond its reasonable control, including but not limited to acts of God, war, terrorism, riots, embargoes, acts of civil or military authorities, fire, floods, accidents, strikes, or shortages of transportation facilities, fuel, energy, labor, or materials.

ARTICLE 15: GENERAL PROVISIONS

15.1 **Entire Agreement:** This Agreement, including all schedules and exhibits, constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior agreements and understandings, whether written or oral.

15.2 **Amendments:** No amendment to this Agreement shall be effective unless it is in writing and signed by both Parties.

15.3 **Governing Law:** This Agreement shall be governed by and construed in accordance with the laws of Alberta, Canada without regard to its conflict of laws principles.

15.4 **Assignment:** Neither Party may assign this Agreement, in whole or in part, without the prior written consent of the other Party.

15.5 **Notices:** All notices required or permitted under this Agreement shall be in writing and shall be deemed effective upon personal delivery, upon confirmation of receipt of facsimile transmission, or upon receipt when sent by registered or certified mail, return receipt requested, postage prepaid, addressed to the Party at the address shown below or at such other address as the Party may designate by notice:

To TON:
Marley Broda
600 – 12220 Stony Plain Road
Edmonton, AB T5N 3Y4
marley@ton-infra.com

To NRG BLOOM:
Makir Volcy
271-4388 Saint-Denis Street
Suite 200
Montréal QC H2J 2L1
makir@nrgbloom.com

15.6 **Severability:** If any provision of this Agreement is held to be invalid or unenforceable,

such provision shall be struck and the remaining provisions shall be enforced.

15.7 **Counterparts:** This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

ARTICLE 16: SCHEDULES AND EXHIBITS

16.1 The following schedules and exhibits form an integral part of this Agreement:

a) Schedule A: Management Fee Structure (to be developed by March 31, 2025) b) Schedule B: Operational Roles and Responsibilities (to be developed by March 31, 2025) c) Schedule C: Risk Management Plan

Signatures Follow on the Next Page
IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date. **TON INFRASTRUCTURE LTD**

By: _____
Name: [Name] Title: [Title] Date: [Date]

NRG BLOOM INC

By: _____
Name: [Name] Title: [Title] Date: [Date]

SCHEDULE C: RISK MANAGEMENT PLAN

Operational Risks

- **Equipment failure or damage during transit**
  - *Mitigation:* Comprehensive shipping insurance, phased deployment approach
- **Power supply fluctuations**
  - *Mitigation:* Proper transformer implementation and electrical infrastructure
- **Local regulatory changes**
  - *Mitigation:* NRG BLOOM's ongoing community relationships, compliance reserve

Financial Risks

- **Bitcoin price volatility**
  - *Mitigation:* Power cost structure tied to hash rate rather than fixed fiat amounts
- **Exchange rate fluctuations**

    - *Mitigation:* Strategic timing of capital deployments, currency hedging as appropriate
- **Return on investment timing**
    - *Mitigation:* Phased implementation to validate assumptions before full capital commitment

Partnership Risks

- **Communication challenges**
    - *Mitigation:* Clear reporting structures, regular status meetings, defined escalation paths
- **Stakeholder alignment**
    - *Mitigation:* 50/50 initial profit sharing on container 1, clear ownership transitions, documented expectations
- **Community relations**
    - *Mitigation:* Direct community benefit through power cost structure, local employment opportunities

From: **Ola Olaniyan** ola@nrgbloom.com
Subject: Re: 25-TI-01 Ogboinbiri
Date: April 23, 2025 at 6:01 PM
To: Makir Volcy makir@nrgbloom.com
Cc: Marley Broda marley@ton-infra.com, Tyler Macpherson tyler@ton-infra.com, David Billay David@ton-infra.com

Hi Marley,

Great to hear, I'll be available to join the call and look forward to discussing how we can bring costs down and get back on track to make this viable. and a success.

Best regards,

Ola Olaniyan
COO, NRG Bloom Inc.

tel:+447554098999 | Ola@nrgbloom.com

On Wed, 23 Apr 2025 at 21:12, Makir Volcy <makir@nrgbloom.com> wrote:

> Hi Marley,
>
> That sounds great. Let's connect on Thursday to discuss how we can address these cost challenges. It may not be as it seems, and we're happy to go over the details in depth.
>
> Best regards,
>
> **Makir Volcy**
> **CEO, NRG Bloom Inc.**
>
> 1-514-602-5411 | Makir@nrgbloom.com
>
> On Tue, 22 Apr 2025 at 23:55, Marley Broda <marley@ton-infra.com> wrote:
>
> > Hi Makir and Ola,
> >
> > We have been inputting the estimated costs in our system as we receive them. We noticed a few cost challenges that have emerged for the Ogboinbiri site deployment, which materially impacts the financial viability of the project.
> >
> > The costs impacts are below:
> >
> > 1. Customs Valuation (Significant impact)
> > The customs rate for importing is very high. The actual rate could reach 35%, representing a large cost increase.
> >
> > 2. Utility Infrastructure Costs
> > We initially understood the site was ready to drop a transformer. However, we've discovered approximately $15,000 in additional required utility work. Additionally, despite requests, we haven't received original vendor invoices/estimates to verify.
> >
> > 3. On-site Personnel Expenses
> > The transportation logistics (including military escorts and speedboat travel), accommodations, and security requirements for our team during deployment are substantially higher than anticipated for a single container project, as there are no accommodations available in Ogboinbiri itself for our staff.
> >
> > 4. Future Deployment Structure
> > There appears to be a fundamental misalignment regarding future projects. TON has offered NRG Bloom an exclusive operations and maintenance structure with scalable per/MW pricing. However, NRG Bloom continues to request revenue sharing without capital contribution, which conflicts with our business model. The benefits extended to NRG were predicated on our understanding under verbally agreed terms for Ogbiobiri and Obrikom.
> >
> > Our analysis shows that with the current revenue split arrangement, the Ogboinbiri deployment is no longer financially viable as a proof-of-concept project due to these increased costs preventing reasonable capital recovery. We value our partnership and would like to discuss revising our current agreement to address these challenges. We're open to your suggestions for potential solutions that could restore project viability.
> >
> > I will send an invite out to meet on Thursday at 2:00 MTN to discuss.
> >
> > Thank you,
> > Marley Broda
> > TON INFRASTRUCTURE

--

From: **David Billay** David@ton-infra.com
Subject: RE: 25-TI-01-Project Costing Review
Date: April 25, 2025 at 8:40 PM
To: Tyler Macpherson tyler@ton-infra.com, Brian Claypool brian@ton-infra.com, Jeff Jespersen jeff.jespersen@ton-infra.com, Makir Volcy makir@nrgbloom.com, Marley Broda marley@ton-infra.com, ola@nrgbloom.com

DB

Hello everyone,

Please see the below meeting minutes and action items from our meeting today:

Customs
- Possible base fee 23,000,000 Naira per shipping container - or price of value of items 35%
- TON expressed potential risks of misclassifying contents and legal implications of doing so
- NRG Bloom to set up relationship with Trojan's customs company to obtain knowledge from Trojan to classify items properly
- Trojan mining license for customs
Action: NRG Bloom to send TON details on customs process through Trojan Mining as customs clearing agent.

Utility cost
- Clarity on utility costs required by TON
Action: NRG Bloom to send utility estimate to TON for scope of work provided.

Ogboinbiri stay on site
- Military guards required at the accommodations
- Potential to stay in the community with food options
Action: NRG Bloom to send TON cost estimate for community stay and details on accommodations (food, security, etc..)

TON requirements for effective cost estimating
- Vendor invoices where possible
- Clarity on requirements, processes, and absolute certainty of scope alignment

Change to the PPA
- NRG Bloom renegotiating PPA with community directly (60% TON/ 40% NRG Bloom (which includes management fee)
Action: NRG Bloom to send revised PPA for TON review and further discussion

Detailed meeting Notes

25-TI-01-Project Costing Review
https://tldv.io/app/meetings/680bbfc6c4011300134d0c2b/

David Billay
General Manager
TON Infrastructure Ltd.
[Office] 780-920-5605
[Cell] 780-266-3214

-----Original Appointment-----
From: Tyler Macpherson <tyler@ton-infra.com>
Sent: Friday, April 25, 2025 7:04 AM

To: Tyler Macpherson; Brian Claypool; David Billay; Jeff Jespersen; Makir Volcy; Marley Broda; ola@nrgbloom.com
Subject: 25-TI-01-Project Costing Review
When: Friday, April 25, 2025 11:00 AM-11:30 AM (UTC-07:00) Mountain Time (US & Canada).
Where: Microsoft Teams Meeting

Microsoft Teams Need help?

Join the meeting now

Meeting ID: 291 785 320 770

Passcode: GS69JP6q

For organizers: Meeting options

From: **Makir Volcy** makir@nrgbloom.com
Subject: Urgent: Final Position on Land Lease and Partnership Terms
Date: June 30, 2025 at 4:44 PM
To: Tyler Macpherson tyler@ton-infra.com
Cc: Marley Broda marley@ton-infra.com, David Billay David@ton-infra.com, Ola Olaniyan ola@nrgbloom.com, Jeff Jespersen jeff.jespersen@ton-infra.com, Brian Claypool brian@ton-infra.com, Julie Peeters julie@nrgbloom.com

MV

Hi TON team,

We want to be clear and transparent at this stage: the current behavior and approach to this partnership are raising serious red flags.

From the beginning, this opportunity was built on the premise of mutual respect, shared value, and a commitment to developing something meaningful in Nigeria, not just extracting value at the lowest possible cost. Unfortunately, your recent conduct suggests otherwise.

Disrespectful to the people and the opportunity.

Tone-deaf to the realities of local partnerships.

Stagnant behavior is stalling momentum and damaging morale.

Exploitative nickel-and-diming when you should be investing in long-term success.

The refusal to commit to a 5-year land lease over a relatively small amount sends a strong message to both the local stakeholders and our team: that you are not willing to invest in the long-term success of this project or in the trust of the community hosting it.

This is a small village. The ask is reasonable. Yet instead of moving forward decisively, you've slowed negotiations, challenged every line item, and positioned yourselves as if this partnership is a favor. It's not. It's a business opportunity with enormous upside for all parties but only if it's treated as a serious and respectful venture.

Your approach so far has:

Stalled progress and created unnecessary delays, Circle around on calls on top of calls

Irritated and disrespected local partners and landowners,

Displayed a short-term, transactional mindset that undermines the broader vision,

And shown a concerning unwillingness to make even baseline commitments. The container is on the water, we've arranged for clearance and taken measures to prepare yet we have to repeat ourselves 3 times to get a commercial invoice, stalling everyone else in this critical process.

This is a final warning. I'm not interested in joining another call. We've done 6 months of calls and in person meetings and you act as though you still don't trust us.

I'm interested in real action, real commitment. If your team cannot realign with the reality on the ground which includes honoring the full 5-year land lease and get civil works going, we will be forced to explore other partners who are better suited for long-term collaboration and understand the value of doing business *with* the community, not *in spite* of it.

Time is of the essence. Please respond with a clear and final position.

Sincerely,
Makir

Makir Volcy
CEO, NRG Bloom Inc.

1-514-602-5411 | Makir@nrgbloom.com

From: **Ola Olaniyan** ola@nrgbloom.com
Subject: Re: Urgent: Final Position on Land Lease and Partnership Terms
Date: July 1, 2025 at 7:54 AM
To: Marley Broda marley@ton-infra.com
Cc: Makir Volcy makir@nrgbloom.com, Julie Peeters julie@nrgbloom.com, David Billay David@ton-infra.com, Jeff Jespersen jeff.jespersen@ton-infra.com, Brian Claypool brian@ton-infra.com, Tyler Macpherson tyler@ton-infra.com

Hi Marley,

To be absolutely clear, we will not proceed with anything less than a 77% allocation on our container.

That figure is final and non-negotiable. How you choose to or not make it work is entirely up to you, but if it can't be met, we're prepared to walk away—without hesitation.

I'm frankly disappointed it has come to this.

Best,

Ola

On Tue, 1 Jul 2025 at 01:25, Marley Broda <marley@ton-infra.com> wrote:

> Hi Makir,
>
> We are disappointed by the tone and accusations in your recent email, which mischaracterize our partnership and the facts on the ground.
>
> On the 5-year land lease: As confirmed in today's call with Agnus, we have already agreed to the 5-year land lease and committed to beginning civil works. This directly contradicts your assertion that we are "refusing to commit" or showing "unwillingness to make baseline commitments."
>
> We have negotiated and signed agreements in good faith, including the TON <> NRG Agreement that you personally signed.
>
> What we are trying to sort out right now is above and beyond the agreements already signed - specifically the arrangement for your existing 20' container and the newly introduced lease payment obligation:
>
> - **Hashrate sharing agreement** for your existing container with TON-supplied equipment (PDUs, cabling, network equipment, miners, switches)
> - **Lease payment obligation** for the current plot with your container
>
> We remain committed to the project under the terms of our signed agreement. However, we will not be held responsible for commitments or costs that were not part of our negotiated terms, nor will we accept being characterized as exploitative when we seek clarity on newly introduced items.
>
> We propose resolving this through direct, solution-focused discussion rather than ultimatums:

- Finalize hashrate sharing terms for your existing 20' container
- Clarify lease payment obligations and responsibility
- Proceed with civil works on the new plot as already committed

We value this partnership and the opportunity in Nigeria. However, successful partnerships require mutual respect, adherence to signed agreements, and good-faith problem-solving—not threats or mischaracterization of established facts.

To move this forward constructively, we propose the following hashrate distribution for the NRG existing 20' container:

- 25% to Agnus/Community
- 40% to TON
- 35% to NRG Bloom (Includes operations on this container)

If we can reach an agreement on this arrangement, we can take over the current plot lease with Agnus and make payment on that plot.

@Julie Peeters Let us know if you want to chat at 9:00 MTN time tomorrow, with Jeff and I.

Best regards,

Marley Broda

CEO

TON Infrastructure Ltd.

[Office] 780-920-5605

"The Only Easy Day Was Yesterday"

Confidentiality Note:
This message, including any attachments, is confidential and may be privileged. If you have received it by mistake, please notify the sender by return e-mail and delete the message from your system. Any unauthorized use or dissemination of this message, whole or part, is strictly prohibited. Please note that e-mails are susceptible to change. TON Infrastructure shall not be liable for the improper, or incomplete, transmission of the information contained in this communication, nor for any delay in its receipt, or damage to your system. TON Infrastructure does not guarantee that the integrity of this communication has been maintained or that this communication is free of viruses, interceptions or interference. You should implement virus checking procedures before opening this email and any attachments.

From: Makir Volcy <makir@nrgbloom.com>
Date: Monday, June 30, 2025 at 4:44 PM
To: Tyler Macpherson <tyler@ton-infra.com>
Cc: Marley Broda <marley@ton-infra.com>, David Billay <David@ton-infra.com>, Ola Olaniyan <ola@nrgbloom.com>, Jeff Jespersen <jeff.jespersen@ton-infra.com>, Brian Claypool <brian@ton-infra.com>, Julie Peeters <julie@nrgbloom.com>
Subject: Urgent: Final Position on Land Lease and Partnership Terms

Hi TON team,

We want to be clear and transparent at this stage: the current behavior and approach to this partnership are raising serious red flags.

From the beginning, this opportunity was built on the premise of mutual respect, shared value, and a commitment to developing something meaningful in Nigeria, not just extracting value at the lowest possible cost. Unfortunately, your recent conduct suggests otherwise.

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The refusal to commit to a 5-year land lease over a relatively small amount sends a strong message to both the local stakeholders and our team: that you are not willing to invest in the long-term success of this project or in the trust of the community hosting it.

This is a small village. The ask is reasonable. Yet instead of moving forward decisively, you've slowed negotiations, challenged every line item, and positioned yourselves as if this partnership is a favor. It's not. It's a business opportunity with enormous upside for all parties but only if it's treated as a serious and respectful venture.

Your approach so far has:

Stalled progress and created unnecessary delays, Circle around on calls on top of calls

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I'm interested in real action, real commitment. If your team cannot realign with the reality on the ground which includes honoring the full 5-year land lease and get civil works going, we will be forced to explore other partners who are better suited for long-term collaboration and understand the value of doing business *with* the community, not *in spite* of it.

Time is of the essence. Please respond with a clear and final position.

Sincerely,
Makir

Makir Volcy
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Meeting Minutes

Project:	25-101-01	**Date:**	December 22, 2025
Recorded by:	Tyler Macpherson	**Start Time:**	17:35 MST APPROX
Meeting Type:	Phone call	**End Time:**	1800 MST APPROX
Meeting Name:	20’ Pod Electrical Design		

Attendees

Name	Company	Name	Company
Tyler Macpherson	TON	Jeff Jespersen	TON
Makir Volcy	NRG Bloom		

Meeting Agenda

Meeting Purpose: Review electrical design with existing NRG Bloom 20’ mining Pod

Ideal Outcome:

- Understand non-code compliant issues with current design.
- Understand what is required to correct the issues.
- Capex cost and who is responsible for it

Meeting Minutes

Topic 1: Existing Design

Cabling: The installed cabling does not meet industry standards. Key issues include undersized conductors, insufficient number of parallel runs per phase, and non-compliance with applicable derating factors for local conditions in Nigeria. These shortcomings result in inadequate ampacity to safely support the required load and pose risks to system reliability

Over Current Protection: The current overcurrent protection design for the 3-phase electrical system feeding the ASIC miners does not fully comply with industry standards. Specifically, the breaker sizing and conductor ratings fall short of the required 125% continuous load rule (per NEC/CEC and equivalent standards). Critical branch circuits are missing dedicated overcurrent protection or are protected by devices rated above the conductor ampacity, creating risks of overheating, fire, and equipment damage. The overall system is undersized for safe, reliable operation under normal continuous mining loads

System Neutral: The neutral conductor is undersized and does not comply with industry standards. Additionally, a major concern is that the neutral is not isolated separately from

ground at the junction box — it is tied directly to the box without a dedicated neutral bar. This creates a risk of ground-fault currents flowing through the enclosure and compromises safety and system reliability.

Grounding: The grounding system is inadequately configured. The grounding conductor is undersized relative to the main phase conductors, and there is no clear, continuous low-impedance path to earth. This compromises fault-current clearing, increases shock hazard, and fails to meet industry standards and local Nigerian code requirements.

Topic 2: Recommended Actions and Corrections Required to Achieve Compliance and Safe Operation

Cabling Issues: Replace undersized conductors with properly sized cables, including adequate parallel runs per phase. Apply correct derating factors for ambient temperature and installation conditions in Nigeria.

Neutral Conductor: Install a properly sized neutral conductor. Add a dedicated neutral bar in the junction box to isolate the neutral from ground and the enclosure.

Neutral-Ground Bonding at Junction Box: Install a separate neutral bar and ensure neutral is fully isolated from ground at the junction box. Verify proper neutral-ground bonding only at the main service entrance.

Inadequate Grounding System Configuration: Install a properly sized grounding conductor matching or exceeding phase conductor requirements. Establish a continuous, low-impedance path to a verified earth electrode system. Confirm all grounding connections are secure and clearly identified.

Missing or Insufficient Overcurrent Protection for Critical Branches: Install dedicated overcurrent protection for each critical branch at or below the conductor ampacity. Ensure all breakers/fuses comply with the 125% continuous load rule for mining loads.

Topic 3: Capex

Responsibility to correct issues related to the electrical is the responsibility of NRG Bloom

Estimated Capex:

- Cabling replacement (upsized conductors + parallel runs): $10,000 – $18,000
- Neutral conductor upgrade + dedicated neutral bar installation: $6,000 – $8,000
- Grounding system upgrade (conductor + electrode system): $5,000 – $8,000
- Overcurrent protection upgrades (breakers, fuses, branch reconfiguration): $15,000 – $25,000

Total estimated CAPEX: **$36,000 – $59,000 CAD**

Action Log Summary

Action	Assignee	Due Date
Review Identified Issues with 3rd Party	Makir Volcy	December 24th, 2025
Compose Formal Capex Budget	Makir Volcy	December 29th, 2025
Compose execution plan for review and acceptance	Makir Volcy	December 29th, 2025
Schedule follow-up meeting to review the above, and confirm path forward	Makir Volcy	December 30th, 2025

From: **Makir Volcy** makir@nrgbloom.com
Subject: Re: Meeting Minutes
Date: December 23, 2025 at 9:55 AM
To: Jeff Jespersen jeff.jespersen@ton-infra.com, Julie Peeters julie@nrgbloom.com
Cc: Tyler Macpherson tyler@ton-infra.com, Marley Broda marley@ton-infra.com, Brian Claypool brian@ton-infra.com

MV

Hi Jeff,

Thanks for the minutes. I will reach out once we complete the review

Makir Volcy
CEO, NRG Bloom Inc.

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On Tue, 23 Dec 2025 at 11:02, Jeff Jespersen <jeff.jespersen@ton-infra.com> wrote:

> Good morning Makir,
>
> Please see the attached meeting minutes from the call we had yesterday to discuss the electrical issues with NRG Bloom's 20' container. Be sure to look over the action log summary, as we need to have a definitive path forward as soon as possible.
>
> If you have any further questions or concerns, please do not hesitate to reach out.
>
> Thank you,
>
> **Jeff Jespersen**
> *VP Operations*
> **TON Infrastructure Ltd.**
> *[Office] 780-920-5605*
> *[Cell] 780-966-3320*
>
> Bookings
>
> ***"The Only Easy Day Was Yesterday"***
>
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Phase 1 Deployment Timeline (Approx. 6 Weeks Total)

Est Date	Approx Timeline	Milestone	Activities involved
Early May	2 weeks Civil works begins once shipment confirmed	Site Preparation (Civil Works)	- Clearing and grading of designated land area - Foundation prep for container + electrical setup - Site fencing/security measures
Early May	2 weeks	Container Arrival & Customs Clearance	- Container lands at **Tincan Island Port, Lagos** - Customs clearance and forwarding (2 weeks) - Begin prep for inland logistics to Bayelsa
Mid - May	1 week	Inland Transport to Bayelsa Waterside	- Trucking container from Lagos to Bayelsa on flatbed truck (approx. 3 days) - Staging container at Bayelsa waterside for barge loading
Mid- May	4 days	Barge Logistics to Ogboinbiri	- Load container onto barge (5 hours) - Sail to Ogboinbiri site via inland waterways (1 day) - Offload at host location (1 day)
End - May / Early June	1- 2 weeks	Electrical Works & Miner Commissioning	- Mount transformer, feeder pillar, DB box - Electrical cabling, wiring, and testing - Rack and install ASIC miners

			- Setup network, power testing - Go Live (hashing begins by end of Week 6)

Optional Buffer (1 Week)

- One week buffer for unforeseen delays in port clearance, terrain-related transport issues, or power integration complications.

Go-Live Target: End of May / Early June

We aim for the site to be operational and hashing within **6 weeks from start**, assuming no major external delays.